

Court No. - 36

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Krishna Kant Dwivedi

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Bharati Sapru,J.

It is submitted by Sri Krishna Kant Dwivedi, learned counsel for the petitioner that the Electricity Bills received by the petitioner in respect of regular consumption of Electricity have been duly paid by the petitioner. The last Bill dated 24.4.2011 for the period from 20.2.2011 to 20.3.2011 has been paid by the petitioner on 13.5.2011.

It is further submitted that no theft of electricity has been alleged to have been committed by the petitioner. The Citation dated 10.5.2011 (Annexure No. 3 to the Writ Petition) requiring the petitioner to deposit Rs. 75,220/-has been issued without any basis. The procedure laid down in the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 has not been followed before directing for recovery of the said amount from the petitioner.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1,2 and 3 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos.4 and 5 has been accepted by Sri Rajesh Tripathi.

Counter Affidavits on behalf of the respondents may be filed within six weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case before the appropriate Bench on 10.8.2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case, and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, the recovery proceedings initiated against the petitioner pursuant to the Citation dated 10.5.2011 (Annexure No. 3 to the Writ Petition), will remain stayed provided within four weeks from today, the petitioner deposits Rs. 35,000/- with the respondent no.3.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present case.

In the event of default on the part of the petitioner in making the deposit, as directed above, this interim order will stand automatically vacated.

Order Date :- 31.5.2011

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Court No. - 37

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Krishna Kant Dwivedi

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Sunil Hali,J.

As prayed by Mr. Rajesh Tripathi, counter affidavit be filed within three weeks and no more.

List thereafter.

Order Date :- 10.8.2011

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Court No. - 37

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Krishna Kant Dwivedi

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Vinod Prasad,J.

As prayed rejoinder affidavit be filed within three weeks and no more. List thereafter.

Order Date :- 1.9.2011

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Court No. - 39

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Krishna Kant Dwivedi

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

List again showing the name of Sri Baleshwar Chaturvedi also as counsel for the respondent.

Order Date :- 31.7.2014

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Court No. - 39

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Krishna Kant Dwivedi

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Case called out.

None is present on behalf of the petitioner to press this petition.

List in ordinary course.

Order Date :- 25.8.2014

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Court No. - 32

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Krishna Kant Dwivedi, M.P
Singh, Vinod Kumar Soni

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Amar Singh Chauhan, J.

Passed over on the request of the learned counsel
for the petitioner.

Order Date :- 23.3.2015

Bhaskar

(Amar Singh Chauhan, J.) (Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Krishna Kant Dwivedi, M.P
Singh, Vinod Kumar Soni

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Dinesh Gupta, J.

Passed over on the illness slip of the learned
counsel for the petitioner.

Order Date :- 30.3.2015

Bhaskar

(Dinesh Gupta, J.) (Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Krishna Kant Dwivedi, M.P
Singh, Vinod Kumar Soni

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Amar Singh Chauhan, J.

Passed over on the request of the learned counsel
for the petitioner.

Order Date :- 6.4.2015

Bhaskar

(Amar Singh Chauhan, J.) (Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Krishna Kant Dwivedi, M.P Singh, Vinod Kumar Soni

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Manoj Kumar Gupta, J.

Having heard the learned counsel for the parties and having perused the affidavits, one finds that there were arrears of Rs.46,722/- towards electricity dues as on 20.03.2009, on account of which the electricity was disconnected. On a subsequent checking on 01.10.2009, it was found that the petitioner was unauthorisedly using the electricity and consequently, a First Information Report was lodged and a provisional order dated 10.12.2009 was passed calling upon the petitioner to pay a sum of Rs.75,198/-. The petitioner did not file any objection to this provisional order and consequently a recovery certificate has been issued, which has been challenged in the present writ petition.

This Court by an interim order dated 31.05.2011 directed the petitioner to deposit a sum of Rs.35,000/-. The learned counsel for the petitioner further states that the aforesaid amount has been deposited.

We are of the opinion that the petitioner should have filed an objection against the provisional assessment order. Since the same was not done, recovery proceedings have been rightly initiated. The petitioner has a remedy of filing

an appeal under Section 127 of the Uttar Pradesh Electricity Act, 2003.

We, accordingly, dispose of the writ petition directing the petitioner to file an appeal under Section 127 of the aforesaid Act within four weeks from today.

If such an appeal is filed by the petitioner, the same shall be decided by the authority concerned on merits and the authority will not go into the question of limitation.

Order Date :- 13.4.2015
MAA/-

(Manoj Kumar Gupta,J.) (Tarun Agarwala,J.)

Court No. - 37

Case :- WRIT - C No. - 32705 of 2011

Petitioner :- Ram Charan

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Krishna Kant Dwivedi, M.P Singh, Vinod Kumar
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Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Manoj Kumar Gupta, J.

No further time can be granted to the petitioner.

The time extension application No.285352 of
2011 is rejected.

Order Date :- 22.4.2016

AKJ

(Manoj Kumar Gupta, J.)

(Tarun Agarwala, J.)